

24STCV25746 24STCV25746

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 24STCV25746 Hearing Date: August 4, 2026 Dept: 512

HEARING DATE: Tues., August 4, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Darkwah

v. Cucamonga Holdings Inc., et al. COMP. FILED: 10-03-24

CASE NUMBER: 24STCV25746

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE DEFAULTS AND DEFAULT JUDGMENTS; MOTION TO QUASH

MOVING PARTY: Defendants

Cucamonga Holdings Incorporated and Iwanfo Ken Uwagboe

RESP. PARTY: Plaintiff Sherry Darkwah

MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT; MOTION TO QUASH

(CCP §§ 473, subd. (d); 473.5)

TENTATIVE RULING:

Defendants Cucamonga

Holdings Incorporated and Iwanfo Ken Uwagboe's Motion to Set Aside and Vacate

Default and Default Judgment is GRANTED.

The defaults entered in

July 2025, and default judgments entered on November 19, 2025, are hereby VACATED and SET ASIDE.

All Proofs of Service filed regarding the Summons and Complaint in this matter are STRICKEN.

The Court schedules an Order to Show Cause re: Proof of Service for September 14, 2026 at 8:30 a.m. in Department 512 of the Stanley Mosk Courthouse.

Moving parties are ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on July 23, 2026 [X] Late [
] None

REPLY: None filed as
of July 29, 2026 [
Late [X] None

ANALYSIS:

I.
Background

On October 3, 2024, Plaintiff Sherry Darkwah ("Plaintiff") filed the instant action against Defendants Cucamonga Holdings Inc. ("Cucamonga") and Iwanfo Ken Uwagboe ("Uwagboe") ("Defendants") and Does 1-20, alleging 15 causes of action.

On January 16, 2025, Plaintiff filed proof of substitute service on Uwagboe by serving "JOHN DOE (Gender: M Age: 40 Height: 5'10" Weight: 185 Race: AFRICAN AMERICAN Hair: Black Other:) Co Occupant" at "43258 Sunny Ln Lancaster, CA 93536" (the "First Sunny Lane Address") on December 18, 2024. (1/16/25 Proof of Service.)

On April 2, 2025, Plaintiff filed proof of substitute service on Cucamonga by serving "John Doe (Gender: M Age: 30 Height: 5'9" Weight: 180 Race: AFRICAN AMERICAN Hair: BLACK Other:) PERSON IN CHARGE," at "8726 S. Sepulveda Blvd. #E Los Angeles, CA 90045" ("Sepulveda Address") on March 25, 2025. (4/2/25 Proof of Service.)

On April 10, 2025, Plaintiff filed proof of substitute service on Cucamonga by serving "JANE DOE (Gender: F Age: 35 Height: 5'4" Weight: 140 Race: AFRICAN AMERICAN Hair: BLACK Other:) PERSON IN CHARGE" at "43257 Sunny Ln Lancaster, CA 93536" (the "Second Sunny Lane Address") on April 1, 2025. (4/10/25 Proof of Service.)

On July 11, 2025 Plaintiff filed proof of substitute service on Cucamonga by serving "JANE DOE (Gender: F Age: 35 Height: 5'4" Weight: 140 Race: AFRICAN AMERICAN Hair: BLACK Other:) PERSON IN CHARGE" at the Second Sunny Lane Address on April 1, 2025. (7/11/25 Proof of Service.)

That same day, default was entered against Uwagboe.

On July 14, 2025, default was entered against Defendants.

On November 19, 2025, default judgment was entered against Defendants.

On July 1, 2026, the Court posted a Tentative Ruling on a Motion to Vacate Default Judgment filed by Defendants on May 5, 2026, but did not adopt the Tentative Ruling and took the Motion off calendar due to Defendants failure to appear at the Motion hearing. (See 7/1/26 Order.)

On July 7, 2026, Defendants filed the instant Motion to Set Aside and Vacate Default and Default Judgment (the "Motion").

On July 23, 2026, Plaintiff filed an Opposition.

As of July 29, 2026, no Reply has been filed.

II.

Legal

Standard & Discussion

Defendants move to set aside their defaults and default judgments under Code of Civil Procedure sections 473, subdivision (d), and 473.5. Defendant also moves to quash service of the Summons and Complaint.

In Opposition, Plaintiff stipulates that service on Uwagboe individually was improper and therefore does not oppose the Motion as to Uwagboe. (Opp.) However, Plaintiff contends service upon Cucamonga as an entity was proper, and the Motion should be denied as to Cucamonga. Further, Plaintiff contends that there is conflicting evidence of proper service on Cucamonga and requests that, if the Motion is not denied, the Court allow supplemental evidence to be filed and/or holds a limited evidentiary hearing to resolve the evidentiary dispute. (See Opp.)

A.

Motion to Set Aside

Default and Default Judgment

Code of Civil

Procedure section 473.5

Code of Civil Procedure section 473.5

provides, in pertinent part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or

she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion “shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

Here, Defendants filed the Motion within two years from entry of default in July 2025, and default judgment on November 19, 2025. (Code Civ. Proc., § 473.5, subd. (a).)

No proof of service was filed regarding the default or default judgment. Thus, the Court finds the Motion timely.

In support of the Motion, Defendants filed an affidavit from Uwagboe, who is also Cucamonga Holding's registered agent for service of process, showing under oath that Defendants' lack of actual notice in time to defend the action was not caused by avoidance of service or inexcusable neglect. Indeed, Uwagboe states that Uwagboe never received the Summons and Complaint in this action at any point at any address; the service attempts to addresses other than “818 Austin Avenue, Apt. 3, Inglewood, CA 90302” (the “Austin Avenue Address”) were not proper service addresses for either defendant; and Defendants did not avoid service. (Motion, Uwagboe Decl.) Further, Uwagboe declares under penalty of perjury that Uwagboe has no relationship to the First Sunny Lane Address and Sepulveda Address that Plaintiff used for service of the Summons and Complaint. (Motion, Uwagboe Decl.) As to the Second Sunny Lane Address, Uwagboe asserts this is Uwagboe's rental property, but Uwagboe has never resided there, collected mail there, or lived or worked at this property as a dwelling, usual abode, or office or regular place of business. (Motion, Uwagboe Decl.) Defendants also submit a copy of Cucamonga Holding's listing on the Secretary of State, which states Cucamonga Holding's registered agent for service of process is Uwagboe at the Austin Avenue Address. (Motion, Uwagboe

Decl., Exh. B.)

Plaintiff's evidence provided in support of the Opposition fails to demonstrate that any of the service addresses besides the Austin Avenue address were proper service addresses for Defendants and, moreover, there is no evidence provided that service of the Summons and Complaint or any other documents in this matter were mailed to the Austin Avenue address.

Further, the Court notes that Plaintiff stipulates to setting aside the default and default judgment entered against Uwagboe individually. (See Opp.)

Finally, a proposed Answer is filed with the Motion. (See Code Civ. Proc., § 473.5, subd. (a).)

Thus, Defendants are entitled to relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473, subdivision (d)

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d), emphasis added.)

An order is considered "void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence." (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1021.) "There is no time limit to attack a judgment void on its face." (Ibid.) However, if "the invalidity is not apparent [by an inspection of the judgment or the judgment roll], it may be set aside by motion, if such motion is filed within a reasonable time, i. e., not longer than the time set forth in Code of Civil Procedure, section 473." (City of Los Angeles v. Morgan (1951) 105 Cal.App.2d 726, 730.) Code of Civil Procedure section 473, subdivision (d) contains no express time limit, and the

California Supreme Court recently abrogated the rule that Section 473, subdivision (d) is subject to the two-year limit set forth in Code of Civil Procedure section 473.5. (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225-226 [“We hold that a section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation”].)

In the context of a default judgment, Code of Civil Procedure section 670 subdivision (a) defines the “judgment roll” as the following papers, without being attached together: “[T]he summons, with the affidavit or proof of service; the complaint; the request for entry of default with a memorandum indorsed thereon that the default of the defendant in not answering was entered, and a copy of the judgment.” (Code Civ. Proc., § 670, subd. (a).)

“California is a jurisdiction where the original service of process, which confers jurisdiction, must conform to statutory requirements or all that follows is void.” (Honda Motor Co. v. Superior Court (1992) 10 Cal.App.4th 1043, 1048, overruled on other grounds.)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’ ” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413; see also Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160.) However, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Here, the Court finds the Motion timely.

Code of Civil Procedure section 415.20, subdivisions (a) and (b) authorize substitute service in lieu of personal delivery, with subdivision (b) stating as follows:

If a copy of

the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

(See Code
Civ. Proc., § 415.20,
subd. (b).)

As to Defendants' challenge to service of process, the challenged proofs of substitute service are attested to by registered process servers and, therefore, are entitled to a presumption of truth in its contents. The burden of proof thus shifts to Defendants. (Cal. Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

In support of the challenge to service of process, Defendants provide a declaration from Uwagboe that states Uwagboe has no relationship to the First Sunny Lane Address and Sepulveda Address that Plaintiff used for service of the Summons and Complaint. (Motion, Uwagboe Decl.) As to the Second Sunny Lane Address, Uwagboe asserts this is Uwagboe's rental property, but Uwagboe has never resided there, collected mail there, or lived or worked at this property as a dwelling, usual abode, or office or regular place of business. (Motion, Uwagboe Decl.) Defendants also submit a copy of Cucamonga Holding's listing on the Secretary of State, which states Cucamonga Holding's registered agent for service of process is Uwagboe at the Austin Avenue Address. (Motion, Uwagboe Decl., Exh. B.)

The Court finds this evidence suffices to meet Defendants' burden of proof. Thus, the burden of proof shifts to Plaintiff.

First, the Court finds Plaintiff

stipulates that service was improper as to Uwagboe individually. (Opp.) Thus, the Motion is GRANTED as to Uwagboe.

Next, the Court turns to

Plaintiff's evidence as it applies to demonstrating proper service on Cucamonga. The Court finds Plaintiff submits a declaration from Plaintiff's counsel in support of the Opposition, the proofs of service and declarations of due diligence filed in this matter, the entries of default and default judgment in this matter, and various investigative reports of Uwagboe. (Opp., Mehrabian Decl., Exhs. A-G.) Plaintiff's counsel attests that there were multiple unsuccessful attempts to serve Uwagboe at the Austin Avenue address on behalf of Cucamonga prior to the proofs of service filed in this matter, and business reports and/or investigative reports populated the Sunny Lane Addresses and Sepulveda Address as proper addresses for Cucamonga.

The

Court does not find Plaintiff's evidence adequately rebuts Defendants' evidence. Plaintiff does not dispute that Uwagboe is Cucamonga's registered agent for service of process, and Plaintiff's unauthenticated business and/or investigative report search results do not demonstrate that the Sunny Lane Addresses or Sepulveda Address are proper substitute service addresses for Cucamonga's registered agent Uwagboe. The Court also does not find Plaintiff's argument that service was attempted at the Austin Avenue address proves proper service either – attempts at service are separate and apart from effecting service. Furthermore, if personal service and substitute service at the proper service address of the Austin Avenue address were unsuccessful, the Code of Civil Procedure provides Plaintiff additional alternative means of service to effect service on Cucamonga; however, those alternative means of service do not include substitute serving individuals at improper addresses.

As such, the Court finds

Plaintiff has failed to satisfy its burden. Thus, the Motion is GRANTED as to Cucamonga.

Accordingly, the Motion is

GRANTED.

B.

Motion to Quash

Defendants also

move to quash service of summons pursuant to Code of Civil Procedure section 418.10. (Motion, pp. 2, 16.)

A defendant, on or before

the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.)

Having

determined the request to set aside defaults and default judgments should be granted because service of the summons and complaint on Defendants did not substantially comply with the statutory requirements, the Court GRANTS Defendants' request to quash service of the summons and complaint pursuant to Code of Civil Procedure section 418.10 for the same reasons discussed above.

III.

Conclusion & Order

For the foregoing reasons,

Defendants Cucamonga Holdings Incorporated and Iwanfo Ken Uwagboe's Motion to Set Aside and Vacate Default and Default Judgment is GRANTED.

The defaults entered in

July 2025, and default judgments entered on November 19, 2025, are hereby VACATED and SET ASIDE.

All Proofs of Service

filed regarding the Summons and Complaint in this matter are STRICKEN.

The Court schedules an

Order to Show Cause re: Proof of Service for September 14, 2026 at 8:30 a.m. in Department 512 of the Stanley Mosk Courthouse.

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